Finally, while Congress intended restitution under the MVRA to both punish offenders and compensate victims, victims cannot initiate or settle the restitution process as they would if it were a civil proceeding. The text and structure of the Act demonstrate that Congress intended restitution under the Act to impose criminal punishment. Pp. 165–169.

113 F. 4th 839, reversed and remanded.

KAVANAUGH, J., delivered the opinion for a unanimous Court. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 169.

Amy Mason Saharia argued the cause for petitioner. With her on the briefs were *Lisa S. Blatt*, *Atticus W. DeProspo*, *Rohit P. Asirvatham*, and *R. Shane Roberts, Jr.*

Ashley Robertson argued the cause for the United States urging vacatur. On the briefs were *Solicitor General Sauer*, *Deputy Solicitor General Feigin*, *Acting Assistant Attorney General Galeotti*, and *Andrew W. Lang.*

John F. Bash, by appointment of the Court, 605 U. S. 908, argued the cause as *amicus curiae* in support of the judgment below. With him on the brief were *Nicholas J. Caluda*, *Alex Van Dyke*, and *Christopher G. Michel.**

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JUSTICE KAVANAUGH delivered the opinion of the Court.

Under the Mandatory Victims Restitution Act of 1996, defendants convicted of certain federal crimes must pay monetary restitution to the victims. That Act, known as the

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**Andrew T. Tutt*, *Dana Kagan McGinley*, and *Nicole L. Masiello* filed a brief for Restitution Scholars as *amici curiae* urging reversal. Briefs of *amici curiae* urging vacatur were filed for the Cato Institute et al. by *Matthew P. Cavedon*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for the NACDL et al. by *Lauren Willard Zehmer*, *Abby Wright*, *Hassan Ahmad*, and *Jeffrey T. Green*; and for Wayne A. Logan by *Krystal B. Swendsboe.*

Briefs of *amici curiae* were filed for Beth A. Colgan, *pro se*; for Jennifer Laurin by *Mahogane Reed*; and for Debra Ricketts-Holder by *Allyson N. Ho*, *Bradley G. Hubbard*, and *Paul G. Cassell.*

MVRA, became law on April 24, 1996. Petitioner Ellingburg was sentenced later in 1996 and ordered to pay restitution in the amount of $7,567.25. He has not yet satisfied that obligation.

Ellingburg has now raised an Ex Post Facto Clause challenge to his continued restitution obligation because he committed his crime *before* the enactment of the MVRA. The Ex Post Facto Clause issue turns in part on the threshold question of whether restitution under the MVRA is criminal punishment. Applying Circuit precedent, the U. S. Court of Appeals for the Eighth Circuit concluded that restitution under the MVRA is not criminal punishment. 113 F. 4th 839, 841–842 (2024). We now reverse.

In this Court, Ellingburg and the United States agree that the Eighth Circuit erred and that MVRA restitution is criminal punishment. The Court therefore appointed John F. Bash as *amicus curiae* to defend the judgment of the Eighth Circuit. 605 U. S. 908 (2025). He has ably discharged his responsibilities.

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When determining whether a law violates the Ex Post Facto Clause, the Court must evaluate whether the law imposes a criminal or penal sanction as opposed to a civil remedy. Assessing whether "a statutory scheme is civil or criminal is first of all a question of statutory construction" that requires the Court to "consider the statute's text and its structure." *Smith* v. *Doe*, 538 U. S. 84, 92 (2003) (quotation marks omitted).[1]

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[1] If the text and structure of a statute do not demonstrate that Congress intended criminal punishment, the statute may still be deemed criminal or penal if the "party challenging the statute provides 'the clearest proof' that 'the statutory scheme [is] so punitive either in purpose or effect as to negate [the Government's] intention' to deem it 'civil.'" *Kansas* v. *Hendricks*, 521 U. S. 346, 361 (1997) (quoting *United States* v. *Ward*, 448 U. S. 242, 248–249 (1980)).

Here, the statutory analysis is straightforward: Restitution under the MVRA is plainly criminal punishment for purposes of the Ex Post Facto Clause.[2]

Numerous features of the MVRA lead to that conclusion. The MVRA labels restitution as a "penalty" for a criminal "offense." 18 U. S. C. § 3663A(a)(1). A court may order restitution only with respect to a criminal "defendant" and only after that defendant's conviction of a qualifying crime. *Ibid.* Restitution is imposed during "sentencing" for the offense. *Ibid.* At the sentencing proceeding where restitution is ordered, the Government, not the victim, is the party adverse to the defendant.

At sentencing, restitution is imposed together with other criminal punishments such as imprisonment and fines. Indeed, for misdemeanors, restitution may be "in lieu of" those punishments, making restitution the sole punishment for a federal offense in certain circumstances. *Ibid.* In addition, when a defendant does not make the required restitution payments, the court may modify the terms of his supervised release or probation and impose imprisonment if the court determines that "alternatives to imprisonment are not adequate to serve the purposes of punishment and deterrence." §§ 3614(b)(2), 3613A(a)(1).

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As a further sign that MVRA restitution is criminal punishment, the federal MVRA restitution regime is codified in Title 18, "Crimes and Criminal Procedure." The main statutory provisions authorizing restitution orders, § 3663 and § 3663A, are contained in Chapter 232 of Title 18, entitled "Miscellaneous Sentencing Provisions." Another statutory provision, § 3556, states that a court "shall order restitution" in "imposing a sentence" for covered offenses. That provision is housed in Chapter 227 of Title 18, entitled "Sen-

[2] *Amicus* contends that Ellingburg's restitution was not imposed under the MVRA even though Ellingburg was sentenced after the MVRA took effect in 1996. But the Eighth Circuit decided this case on the understanding that the MVRA was applied to Ellingburg.

tences." The statute also refers to a "sentence that imposes an order of restitution." §3664(*o*). When imposing restitution, a district court must follow the procedures applicable to other criminal penalties, including the Federal Rules of Criminal Procedure. See §3664(c). And §3663(c) directs the U. S. Sentencing Commission to promulgate criminal sentencing guidelines for restitution. §208, 110 Stat. 1240; §3663(c)(7).

When viewed as a whole, then, the MVRA makes abundantly clear that restitution is criminal punishment. We are not saying that all of the statutory features present here are necessary to constitute criminal punishment, but they are sufficient.

Given the statutory text and structure, it comes as no surprise that this Court's precedents have understood restitution under the MVRA to be criminal punishment. In *Manrique* v. *United States*, the Court stated that the MVRA requires courts "to impose restitution as part of the sentence." 581 U. S. 116, 118 (2017). In *Pasquantino* v. *United States*, the Court explained that restitution under the MVRA is designed "to mete out appropriate criminal punishment." 544 U. S. 349, 365 (2005). And in *Paroline* v. *United States*, the Court repeated that description. 572 U. S. 434, 456 (2014).

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This Court's precedents on related issues further buttress the conclusion that MVRA restitution is criminal punishment. For example, forfeiture under 18 U. S. C. §982(a)(1)—like restitution under the MVRA—occurs at the culmination of a criminal proceeding and requires conviction of an underlying crime. That forfeiture, the Court concluded, is criminal punishment. See *United States* v. *Bajakajian*, 524 U. S. 321, 328 (1998). By contrast, the Court determined that the forfeiture of firearms under 18 U. S. C. §924(d) ordered during an *in rem* proceeding is a civil sanction. *United States* v. *One Assortment of 89 Firearms*, 465 U. S. 354, 363–366 (1984).

As the Government cautions, not everything that occurs at criminal sentencing or even that appears in a criminal judgment may necessarily be part of the punishment. See Tr. of Oral Arg. 22–23. But we need not explore that point further here because, for the reasons we have explained, MVRA restitution is criminal punishment.

Amicus relies heavily on *Smith* v. *Doe*, 538 U. S. 84. There, this Court considered a law requiring a defendant convicted of certain crimes to register as a sex offender. The Court held that the registration mandate was civil. The legislature adopted "distinctly civil procedures" for the imposition of registration requirements. *Id.*, at 96 (quotation marks omitted). By contrast, to reiterate what we said above, MVRA restitution is labeled as a penalty, is codified in the criminal code, is predicated on a criminal conviction, is imposed against a criminal defendant, is sometimes imposed in lieu of other penalties, is ordered at sentencing where the United States is the adverse party, and can result in resentencing when the defendant refuses to pay. So *Smith* v. *Doe* does not control.

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It is true, as *amicus* thoroughly explains, that the MVRA seeks to compensate crime victims, a nonpunitive goal. Several provisions of the MVRA reflect that objective, such as a provision requiring that restitution amounts be based on a victim's loss. § 3664(f)(1)(A); see also, *e. g.*, § 3664(j). But those provisions show only that Congress intended restitution under the MVRA to both punish and compensate. And so long as the text and structure of the Act demonstrate that Congress intended at least "to impose punishment," that "ends the inquiry." *Smith*, 538 U. S., at 92; see *Paroline*, 572 U. S., at 456; *Pasquantino*, 544 U. S., at 365.

To be sure, as *amicus* points out, victims receive notice of sentencing proceedings and are consulted by prosecutors. But outreach to victims and some participation by victims in criminal proceedings are not unusual. See, *e. g.*, § 3771(a). With respect to restitution, the key point is that victims do

not have the power to initiate or settle the restitution process as they would if it were a civil proceeding.

Our ruling today does not mean that a restitution statute can never be civil. But the statutory text and structure of the MVRA demonstrate that restitution under that Act is criminal punishment.

For those reasons, we reverse the judgment of the U. S. Court of Appeals for the Eighth Circuit and remand the case for further proceedings consistent with this opinion. On remand, the Court of Appeals may consider the Government's separate arguments for affirmance of the District Court's judgment.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

I join the Court's opinion in full because it correctly applies our precedent. I write separately to clarify the foundation of that precedent. This Court's 1798 decision in *Calder* v. *Bull*, 3 Dall. 386, established that the Ex Post Facto Clauses forbid only those retroactive laws that impose "punishment" for a "crime." *Id.*, at 386, 389–391 (opinion of Chase, J.). Over the 228 years since *Calder*, the Court has struggled to articulate what it means for a law to impose punishment for a crime, and thus to be subject to the Ex Post Facto Clauses. The Court's more recent precedents have implemented *Calder* through two multifactor tests that turn largely on whether the legislature labels the law as criminal or civil. But in 1798, "punishment" for a "crime" would have been understood to refer to any coercive penalty for a public wrong. Many laws that are nominally civil today would therefore have been subject to the Ex Post Facto Clauses under *Calder*. I would restore *Calder*'s approach to the Ex Post Facto Clauses.

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The Constitution twice prohibits ex post facto laws. As to the Federal Government, it provides that "No Bill of At-